

25STCV37076 25STCV37076

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV37076 Hearing Date: September 22, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

22, 2026

CASE NAME: All

Inclusive Environmental Services, Inc. v. J-CM Services, Inc., et al.

CASE NO.: 25STCV37076

MOTION

FOR RELIEF FROM DEFAULT

MOVING PARTY: Defendants

Amerco Real Estate Company and 8201 Santa Fe (CA), LLC

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order granting relief from the clerk's entry of default entered on April 27, 2026.

TENTATIVE RULING:

1. Motions

for relief from default are GRANTED;

2. Amerco

and 8201 to file their answer within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On December 18, 2025, Plaintiff All Inclusive Environmental Services, Inc. (Plaintiff) filed a complaint against Defendants J-CM Services, Inc. (J-CM), Amerco Real Estate Company (Amerco), and 8201 Santa Fe (CA), LLC (8201) with causes of action for: (1) breach of contract (J-CM); (2) foreclosure of mechanic's lien; (3) stop notice; (4) account stated (J-CM); and (5) reasonable value of labor and material furnished (J-CM).

According to the complaint, this dispute concerns a remediation project at 8201 Santa Fe Avenue, Huntington Park, California 90255. Plaintiff alleges it was a licensed contractor and had a valid subcontract with J-CM. Plaintiff alleges it performed under the subcontract but J-CM breached. Plaintiff also alleges it has a valid mechanic's lien for its services.

On February 11, 2026, J-CM filed an answer.

LEGAL STANDARD:

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., section 473, subd. (b).) "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or other proceeding was taken." (Ibid.)

ANALYSIS:

8201 and Amerco contend relief is mandatory because their failure to timely respond to the complaint was due to their general counsel's error. The court has not received an opposition.

CCP section 473(b) provides that when an application for relief is made no more than six months after entry of dismissal and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, the court shall set aside a dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473(b).) "The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." *Id.*

Where an "attorney's affidavit of fault" is filed, there is no requirement that the attorney's mistake, inadvertence, or neglect be excusable. Relief must be granted even where the default or dismissal resulted from inexcusable neglect by defendant's attorney. (Robert E. Weil, et al., California Practice Guide: Civil Procedure Before Trial ¶ 5:495 (2018).)

Here, relief is warranted. First, the motion is timely. Default was entered April 27, 2026 and this motion was filed on June 10, 2026 which is within six months of entry of default. Second, Amerco and 8201 provided an attorney declaration from their general counsel indicating the mistaken belief that co-defendant J-CM would indemnify them without further action required. (Declaration of Randal Studer ¶ 6.) Counsel obtained litigation counsel after being informed of the defaults. (*Id.* at ¶ 7.) The mandatory provisions of CCP § 473(b) apply to in-house counsel. (*Gutierrez v. G & M Oil Co., Inc.* (2010) 184 Cal.App.4th 551, 561, 564.) Finally, 8201 and Amerco provided their proposed answer.

Accordingly, the court GRANTS 8201's and Amerco's motion for relief from default.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motions

for relief from default are GRANTED;

2. Amerco

and 8201 to file their answer within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 22, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court